THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o
n the International Maritime Organization concerning the functions of the Marine Environ
ment Protection Committee (the Committee) conferred upon it by international conventions
for the prevention and control of marine pollution, NOTING article 16 of the Internation
al Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to
as the "1973 Convention") and article VI of the Protocol of 1978 relating to the Interna
tional Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred
to as the "1978 Protocol") which together specify the - of 1978 relating to the Internat
ional Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred
to as the "1978 Protocol") which together specify the amendment procedure of the 1978 Pr
otocol and confer upon the appropriate body of the Organization the function of consider
ing and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (MA
RPOL 73/78), HAVING CONSIDERED draft amendments to Annex IV of MAR POL 73/78, 1.

ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the amendments to An
nex IV of MARPOL 73/78, the text of which is set out at annex to the present resolution;
2.

DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that the am
endments shall be deemed to have been accepted on 1 July 2012 unless, prior to that date
, not less than one third of the Parties or Parties the combined merchant fleets of whic
h constitute not less than 50 per cent of the gross tonnage of the world's merchant flee
t, have communicated to the Organization their objection to the amendments; 3.

INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of - constitut
e not less than 50 per cent of the gross tonnage of the world's merchant fleet, have com
municated to the Organization their objection to the amendments; 3.

INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of the 1973 Co
nvention, the said amendments shall enter into force on 1 January 2013 upon their accept
ance in accordance with paragraph 2 above; 4.

REQUESTS the Secretary-General, in conformity with article 16(2)(e) of the 1973 Conventi
on, to transmit to all Parties to MAR POL 73/78 certified copies of the present resoluti
on and the text of the amendments contained in the Annex; 5.

REQUESTS FURTHER the Secretary-General to transmit to the Members of the Organization wh
ich are not Parties to MAR POL 73/78 copies of the present resolution and its Annex .

RESOLUTION MEPC.200(62) Adopted on 15 July 2011 A